IN THE CIRCUIT COURT '10 OF GHANA, ACCRA, HELD THIS WEDNESDAY THE 9TH DAY OF APRIL, 2025 BEFORE HER HONOUR EVELYN E. ASAMOAH (MRS)

CASE NO. C5/233/2024

AUGUSTINA MANUBEA = PETITIONER

VRS

CEPHAS TETTEGAH = RESPONDENT

MS. DORIS AGBETSISE FOR THE RESPONDENT

MS. JEAN TACHIE-MENSON FOR THE PETITIONER

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JUDGMENT

● The wife petitioned for divorce, alleging unreasonable behaviour and adultery by her husband. The husband, the respondent herein, stated, '… It is difficult for me to stay close to the petitioner as I desire to do, though I hurt so much within, My Lord, I want the petitioner to be happy the way she wishes to be; hence, I pray the court may grant her the divorce…'

In the case of Kweku Attah V. The Republic [2022] DLSC11670 -Prof. Mensa-Bonsu (Mrs.) **JSC**: - stated: "…When a marriage which supposedly began with love ends with such vicious acts by one party against the other, then one is compelled to see the wisdom in the words of the English poet Percy Bysshe Shelley, who wrote that there are,

"Links of the great chain of things,

To every thought within the mind of man

Sway and drag heavily, each one reels

Under the load towards the pit of death: Abandoned hope, and love that turns to hate:

And self-contempt, bitterer to drink than blood"

● In her particulars, the petitioner stated that the respondent informed her he would never have children with her because of his mother. For no apparent reason, the respondent's mother strongly disliked her and did not speak to her during the marriage. The respondent rarely stayed at home and never slept there, which led to numerous quarrels and acrimony in the marital home. Her niece, who lived with them, confessed that the respondent had an intimate relationship with her.

After the confession, she left the matrimonial home and lived with her parents. The respondent approached her and apologized for his behavior, so she forgave him and returned to the matrimonial home. However, the respondent continued his unreasonable behavior of not eating or sleeping at home. According to the petitioner, she pleaded with him to work on having children, but the respondent reiterated his disinterest in having children with her. She grew tired of this situation and left the house, and the efforts of their family and friends to resolve their differences were unsuccessful. They have not lived as husband and wife since December 2021. She prays for the dissolution of the marriage and a lump sum financial settlement.

● In his answer, the respondent stated that the petitioner's parents forced him to undergo the traditional and customary divorce rites under duress. He asserted that the relationship and communication with the petitioner were lovely until 2012, when the petitioner's nephew came to him and informed him that he had been sent to kill him. Other attempts on his life by his nephew led to misunderstandings, and for that reason, he spent more time in church. The families resolved that issue and fined the respondent, who duly paid the fine. He stated that he discussed, on numerous occasions, his efforts to have a child with the petitioner.

In paragraph 19 of his answer, he alleged that he has suffered pain, anxiety, stress, and psychological trauma due to the immature way they handled their issues. He added that the court may grant the 'dissolution of the marriage if it can make his wife peaceful… and out of court settlement to discuss and settle on a lump sum due his wife in case of dissolution of the marriage'

● *Dissolution of the marriage* -The first issue for determination is whether the marriage has broken down beyond reconciliation.

In the case of ***Mariama Esseku V. Adams Inkoom*** and Others- suit number H1/223/2018, dated 14th March 2008 Court of Appeal, Justice Dennis Adjei stated:

> *"The parties who marry under the customary law must dissolve it according to the same custom else the marriage will subsist until it is properly dissolved. However, when the parties contract any form of marriage for instance under the ordinance, the marriage may in accordance with the law regulating that particular marriage. Where the marriage is contracted under Christian marriage, it is a court of competent jurisdiction which can dissolve it upon proof that the marriage had broken down beyond reconciliation"*

Section 1(2) of the Matrimonial Causes Act, 1971 (Act 367) provides that the ground for granting a petition for divorce shall be that the marriage has broken down beyond reconciliation. Section 2 of the Act 376 states: (Proof of breakdown of marriage)

> *2(1) For the purpose of showing that the marriage has broken down beyond reconciliation the petitioner shall satisfy the Court of one or more of the following facts:*
>
> *(a) That the respondent has committed adultery and that by reason of the adultery the petitioner finds it intolerable to live with the respondent; (Adultery)*
>
> *(b) That the respondent has behaved in a way that the petitioner cannot reasonably be expected to live with the respondent; (Unreasonable behaviour)*

(f) That the parties to the marriage have, after diligent effort, been unable to reconcile their differences.

In the case of Gilbert **Anyetei V Sussana Anyetei** – Supreme Court **CA/J4/67/2021** dated **2/3/2023, Justice Pwamang JSC stated:**

> *"… the law is that the only ground on which a court would order the dissolution of a marriage is that the marriage has broken down beyond reconciliation, particulars of which are required to be specifically pleaded and proved by evidence adduced in court. It is therefore not sufficient for a judge to grant a divorce just because both parties endorsed that relief on their pleadings. Thirdly, evidence of the conduct of the parties during the marriage in most cases is relevant for deciding how any property acquired during the marriage is to be dealt with on its dissolution. Where one spouse claims that she contributed to the acquisition of property standing in the name of the other spouse, the contribution the spouse relies on may be satisfactory matrimonial services offered to the other spouse during the marriage. In such a case, the conduct of the parties in the course of the marriage and what caused the breakdown of the marriage become relevant for a determination of ancillary relief relating to property distribution…"*

● ***Adultery***

According to the petitioner, they lived peacefully and snugly as husband and wife for about two years until 2014, when the respondent started behaving adulterously and extremely unreasonably. In 2012, they rented land at Laterbiokorshie for GHC 3,000 for a period of 2 years to erect a structure and operate a church. She paid GHC 2000, and the respondent paid GHC 1000. They registered the church under the name Peace of Christ Church, and she was the secretary of the church. She added that she gave the respondent

money from her savings to maintain the makeshift shelter, as the respondent was not earning any income. Subsequently, they constructed a building on the land to serve as a church office. However, she has never been paid a monthly salary or any form of allowance. She indicated that she paid for the rent of their apartment, and subsequently, her siblings also provided financial assistance to help them pay their rent.

●The petitioner averred that at the beginning of the marriage, the respondent suggested to her that they should postpone having children due to their financial situation, and she agreed. It later dawned on her that the respondent had no intention of having any children with her. Her niece, who was 15 years old, lived with them for 5 years, during which time the respondent had an amorous relationship with her niece. Her niece confessed to the sexual relationship, where the respondent would pick her up from school to the church premises to have sex, and the several abortions she undertook.

She stated that she has invested all her time and savings in the marriage, such that she is currently facing lots of financial hardships and extreme emotional distress. She prays for a lump sum of GHC 50,000. She indicated that the respondent, who is the head pastor of the church, is in a financial position to compensate her, given that the respondent has over 100 congregants and receives a substantial sum through offerings, tithes, and donations offered to the respondent for prayers.

● The petitioner's niece testified that the respondent indeed had an amorous relationship with her and that he mostly picked her up from school to the church premises to spend the weekend with her. The respondent ordered her not to tell anyone of their rendezvous and that he would kill her if she informed anyone. That he even had sex with her in the matrimonial home when she was about 15 years.

● The Respondent in his witness statement asserted that the petitioner intentionally denied him of his conjugal rights and that he had to force her for same on several

occasions. The petitioner resisted him for weeks without apparent reason and would not speak to him. The petitioner was unkempt and almost always in an angry mood, especially when he attempted to let her know what was expected of a married woman, which made him very terse in the house. The petitioner is fond of creating issues, even open arguments, to the point of quarrels in the church, which makes people leave.

He admitted that he indeed had sexual encounters with the petitioner's niece. He explained that the niece started visiting them during her vacations when she was in Junior High School, and not long after she gained admission to Senior High School. The girl observed what was going on in the house after she started visiting them and started telling him whatever her aunt said about him. The girl consequently became the closest to him. One day, he fell asleep on his couch and later realized that the girl was lying on him so he pushed her off and warned her. Another time, she did the same thing, but he could not resist, so they both ended up knowing each other sexually. He stated:

> *"…I felt trapped into this unrighteous act and threats on my life so I ceased to have anything to do with the niece when she left for the last term to her final year. This infuriated the niece when she completed SHS and realized I did not want to continue the dirty and disgraceful act with her, as she continued to attempt to gossip to me about the petitioner. My lord, since I got married, I have known only my wife and, regrettably, my niece sexually. The petitioner and others may not believe me, but the God I have sinned against knows this …"*

●This is an excerpt of the cross-examination of the respondent.

> ***Q:*** *As a result of the sexual intercourse you were having with the Petitioner's niece, you developed love and affection for the said niece?*
>
> ***A:*** *Yes.*
>
> ***Q:*** *Your amorous relationship with the Petitioner's niece lasted for about five years?*

A: *It's not true. It lasted for four years. From October 2016 to February 2020.*

Q: *It is correct to say that during the course of your amorous relationship with the said niece, your attention was divided between the Petitioner and the niece?*

A: *It's not true. My focus and attention was on the Petitioner.*

Q: *You started having sex with the said niece when she came to live with you during vacations?*

A: *It's not true. It started after she completed JHS in October 2016.*

Q: *You started having sex with the niece when she was still in JHS?*

A: *It's not true.*

Q: *When exactly did you start having sex with the niece?*

A: *After she completed JHS in October 2016.*

The facts show that the respondent committed adultery with the petitioners' niece for about four years, in the church established by the parties and their matrimonial home.

● This conduct, which the respondent has described as regrettable and unfortunate, led to the breakdown of the marriage and caused the petitioner much pain. The facts also establish that the parties' family members and friends have attempted numerous times to resolve the differences, but they were not successful. The court also finds, despite the parties' diligent efforts, that they have been unable to reconcile their differences. The marriage has broken down beyond reconciliation and is hereby dissolved.

In Erskine V, Erskine (1984-1986) IGLR 249, the court held:

> *"… In a matrimonial proceeding such as the instant one, where one spouse succeeded in the action of dissolution of the marriage on some ground of misconduct*

committed by the other spouse, the successful spouse should be entitled to costs against the unsuccessful spouse…"

The evidence shows that the petitioner financially assisted the respondent in establishing the church and is therefore entitled to compensation. Considering the respondent's conduct during the marriage, the court awards the petitioner alimony of GHC 40,000 to be paid in three installments.

(SGD)

H/H EVELYN E. ASAMOAH (MRS)

CIRCUIT COURT JUDGE